

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Lily Carayannis	Team: Squad #10	CCRB Case #: 201505364	☒ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Sunday, 06/21/2015 11:39 PM	Location of Incident: East 96th Street and East New York Avenue	18 Mo. SOL 12/21/2016	Precinct: 77
Date/Time CV Reported Sun, 06/21/2015 11:39 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 06/29/2015 2:25 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Ruben Cespedes	23151	952567	077 PCT
2. SGT Juan Moreno	03602	935351	077 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Juan Moreno	Force: Sgt. Juan Moreno used physical force against § 87(2)(b) and § 87(2)(b)	A . Alleged Victim Uncooperative
B . POM Ruben Cespedes	Force: PO Ruben Cespedes used physical force against § 87(2)(b) and § 87(2)(b)	B . Alleged Victim Uncooperative

Case Summary

On June 21, 2015, § 87(2)(b) filed the following complaint with IAB on the behalf of § 87(2)(b) and § 87(2)(b). On July 7, 2015, § 87(2)(b) was contacted via telephone, but she refused to participate in the investigation if § 87(2)(b) and § 87(2)(b) did not cooperate.

On July 20, 2015, § 87(2)(b) was contacted via telephone, but she refused to provide an in-person statement as she was concerned that it would affect her on-going criminal case.

On July 6, 2015, a “please call” letter was sent to § 87(2)(b). Between July 10, and July 21, 2015, five calls were placed to § 87(2)(b). On July 10, and July 13, 2015, calls were placed to § 87(2)(b) and § 87(2)(b) stated he would like to speak with an attorney before providing a statement. On July 14, 2015, § 87(2)(b) was contacted via telephone and he scheduled an in-person interview for July 17, 2015. § 87(2)(b) missed this appointment without calling in advance to cancel or reschedule. A “missed appointment” letter was sent to § 87(2)(b) on July 17, 2015 and two calls were placed to him on July 20, and July 21, 2015 and voice messages were left. To date, § 87(2)(b) has not rescheduled his in-person interview. A search of the Department of Correction inmate lookup website, conducted on July 21, 2015, confirmed that § 87(2)(b) is not currently incarcerated. This case was not suitable for mediation, as both § 87(2)(b) and § 87(2)(b) were arrested for assaulting a police officer. It is therefore recommended that the complaint be closed as **victim uncooperative**.

Pod: 10

Investigator: _____ Lily Carayannis July 23, 2015
Signature Print Date

Pod Leader: _____
Title/Signature Print Date

Attorney: _____
Title/Signature Print Date